

**Court No. - 37**

**Case :-** WRIT - C No. - 51644 of 2013

**Petitioner :-** Awadh Narayan Mishra

**Respondent :-** State Of U.P. Thru Secy. And 2 Others

**Counsel for Petitioner :-** Radha Mohan Pandey

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Ashok Bhushan,J.**

**Hon'ble Vipin Sinha,J.**

Heard learned counsel for the petitioner. Sri Mahboob Ahmad appears for the respondent.

Petitioner by this writ petition prays for quashing the notice dated 10.7.2013 issued by the Executive Engineer, Electricity Department for the outstanding dues of Rs.53,962/-. Petitioner is disputing the correctness of the bill in this writ petition.

We are of the view that remedy is available to the petitioner to file a complaint under Para 6.5 of U.P. Electricity Supply Code, 2005 before the Executive Engineer, the respondent no.2.

We observe that in event, the petitioner files a complaint, the same shall be considered and appropriate decision shall be taken and communicated to the petitioner.

Writ petition is disposed of.

**Order Date :-** 20.9.2013

M. Himwan